



Photograph by K.M. Kishan

DEMOCRACY AT WORK: People filing for information in Patna

Manch (BRIM). In June 2007, when she sought the distribution details of medicines from the Patna Medical College and Hospital under the RTI Act, Amanullah was asked to cough up Rs 5 lakh as charges for photocopying 2.5 lakh pages of documents. Only on the commission's intervention was she allowed to see the hospital's medicine distribution system at work.

Asking uncomfortable questions indeed has been tumultuous for a few others too. Take the case of 30-year-old Virendra Kumar Shah, a handicapped youth of Pir Maker village of Saran district, who had to face murder charges when he sought information under the Act about the November 2006 appointment of Panchayat teachers. "I was an unsuccessful applicant, so I sought details of the appointments," he says.

Incidentally, the state Information Commission has received almost 7,500 complaints against erring officials and agencies. "Despite substantial resistance betrayed by sundry bureaucrats, Bihar is still one of the best states in terms of RTI implementation. But, we report to the Government whenever we come across any aberration, besides, acting on our own," says Narayanan. So far, the Commission has slapped fines against erring officials in more than 165 cases. Some officials, however, cite procedural troubles. "Record keeping has been manual in the state, because of which information older than a decade is just not available," says Vipin Kumar Sinha, general secretary of Bihar Administrative Service Association. Nevertheless, Bihar Chief Secretary R.J.M. Pillai says, "The implementation of RTI in Bihar has been satisfactory."

Deputy IG of police, Muzaffarpur, Arvind Pandey admits to having seen a local CPI(M) leader Vidhyasagar falsely implicated in several police cases after he sought details about implementation of certain government schemes. Worse still, Vidhyasagar's applications have failed to yield desired results, so far. Indeed, the Commission has its task cut out.

by Amitabh Srivastava

No Right to Information

Seeking information under the RTI Act in Bihar is a risky proposition as activists often get falsely implicated in various police cases

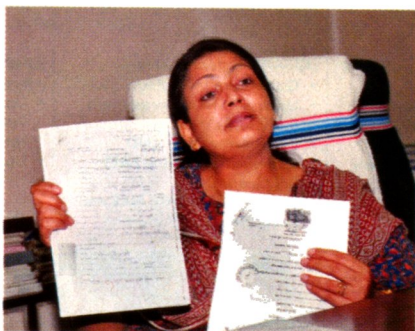
Bihar has always inspired many a Bollywood script-writers penning a few blockbusters. Even today, for someone looking for a contemporary script with a hard-nosed babu playing the pugnacious protagonist who preys on gullible information seekers, the state may still serve as a storehouse of real-life takeoff ideas.

Sample this: In February, social activist Shiv Prakash Rai, 43, had to spend 29 days in judicial custody when Buxar District Magistrate Vishnudev Prasad got an FIR lodged against him, claiming that "Rai demanded Rs 25,000 as monthly extortion money" from him. According to Rai, a frail character who looks nowhere close to the mighty status he needs to extort from a district magistrate in Bihar, he was summoned by Prasad in relation to his applications seeking information on welfare schemes under the Right to Information (RTI) Act. "The officer got angry when I refused to give it in writing that I had received the information I had asked for," Rai told INDIA TODAY.

Rai, who was sent to jail on February 1, was released only after the

police discovered "there was no evidence of an extortion demand". While Prasad has since then been transferred from Buxar, the state Information Commission has ordered a probe. "We have issued a notice to all concerned parties. We will do whatever is required to ensure smooth flow of information," says P.N. Narayanan, state information commissioner.

Rai's, however, is not a solitary story in Bihar, which has earned the sobriquet of being a frontline state in implementation of the RTI Act. "Perception is not always akin to the ground reality," says Parveen Amanullah, coordinator of NGO Bihar Right to Information



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